



# Emery Unified School District

4727 San Pablo Ave.

Emeryville, CA 94608

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## CONTINUING DISCLOSURE ANNUAL REPORT

FISCAL YEAR ENDING

**JUNE 30<sup>th</sup>, 2025**

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## TABLE OF CONTENTS

| <b><u>SECTION</u></b> | <b><u>TITLE</u></b>                                                      | <b><u>PAGE</u></b> |
|-----------------------|--------------------------------------------------------------------------|--------------------|
| A.                    | INTRODUCTION                                                             | 1                  |
| B.                    | AUDITED FINANCIAL STATEMENTS, ADOPTED BUDGET and 1 <sup>st</sup> INTERIM | 1                  |
| C.                    | AVERAGE DAILY ATTENDANCE                                                 | 1                  |
| D.                    | DISTRICT OUTSTANDING DEBT                                                | 2                  |
| E.                    | ASSESSED VALUATION                                                       | 3                  |
| F.                    | SECURED TAX CHARGES & DELINQUENCIES                                      | 3                  |
| G.                    | LARGEST LOCAL SECURED TAXPAYERS                                          | 4                  |
| H.                    | COUNTY OF ALAMEDA – TEETER PLAN                                          | 4                  |
| I.                    | COUNTY OF ALAMEDA – INVESTMENT POOL                                      | 4                  |
| J.                    | REPORTING OF SIGNIFICANT EVENTS                                          | 5                  |
| K.                    | CONTACT INFORMATION                                                      | 6                  |

EXHIBIT A – Listing of CUSIPS tagged to this Annual Report (Page 7-9)

## **A. INTRODUCTION**

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The Emery Unified School District (“District”) of Alameda County hereby provides for the fiscal year ended June 30, 2025 this continuing disclosure annual report (“CD Annual Report”) pursuant to the Continuing Disclosure Agreements in connection with the following financings:

1. General Obligation Bonds 2010 Election, 2013 Series D
2. General Obligation Bonds 2010 Election, 2015 Series E
3. 2015 General Obligation Refunding Bonds
4. General Obligation Bonds 2010 Election, 2017 Series F
5. 2017 General Obligation Refunding Bonds
6. General Obligation Bonds 2010 Election, 2019 Series G
7. 2019 General Obligation Refunding Bonds

**All bonds have the Base CUSIP-6 #291119**

## **B. AUDITED FINANCIAL STATEMENTS, ADOPTED BUDGET and INTERIM**

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The District’s FYE 2025 Audited Financial Statements, 2025-26 Adopted Budget and 1<sup>st</sup> Interim have been filed separately from this CD Annual Report on the Electronic Municipal Market Access (EMMA) website.

**FYE 2025 Annual Audit:** <https://emma.msrb.org/P22019054-P21537915-P21994936.pdf>

**2025-26 Adopted Budget:** <https://emma.msrb.org/P22019056-P21537917-P21994938.pdf>

**2025-26 Budget Update and 1<sup>ST</sup> Interim:** <https://emma.msrb.org/P22019059-P21537920-P21994941.pdf>

## **C. AVERAGE DAILY ATTENDANCE**

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### **EMERY UNIFIED SCHOOL DISTRICT**

| <b>Fiscal Year</b> | <b>Average Daily Attendance (P2)</b> |
|--------------------|--------------------------------------|
| 2022-23            | 566                                  |
| 2023-24            | 557                                  |
| <b>2024-25</b>     | <b>553</b>                           |

*Source: District Audits*

## **D. DISTRICT OUTSTANDING DEBT**

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### **EMERY UNIFIED SCHOOL DISTRICT**

The District had no Short-Term Debt Obligations at June 30, 2025.

A schedule of changes in long-term liabilities for the year ended June 30, 2025 consisted of the following:

|                           | Balance<br>July 1, 2024 | Adjustments<br>(Note 10) | Adjusted Balance<br>July 1, 2024 | Additions    | Deductions   | Balance<br>June 30, 2025 | Due in<br>One Year |
|---------------------------|-------------------------|--------------------------|----------------------------------|--------------|--------------|--------------------------|--------------------|
| Governmental Activities   |                         |                          |                                  |              |              |                          |                    |
| General obligation bonds  | \$ 83,065,742           | \$ -                     | \$ 83,065,742                    | \$ 1,124,001 | \$ 2,265,000 | \$ 81,924,743            | \$ 2,430,000       |
| Unamortized debt premiums | 2,844,956               | -                        | 2,844,956                        | -            | 230,754      | 2,614,202                | 220,530            |
| Compensated absences      | 79,320                  | 883,496                  | 962,816                          | 236,278      | 23,088       | 1,176,006                | 289,800            |
| Net pension liability     | 9,388,030               | -                        | 9,388,030                        | -            | 1,553,537    | 7,834,493                | -                  |
| Net OPEB liability        | 931,755                 | -                        | 931,755                          | -            | 4,709        | 927,046                  | -                  |
| Total                     | \$ 96,309,803           | \$ 883,496               | \$ 97,193,299                    | \$ 1,360,279 | \$ 4,077,088 | \$ 94,476,490            | \$ 2,940,330       |

*Source: District Audit*

The outstanding general obligation bonds of the District at June 30, 2025 is shown below:

| Series             | Issuance<br>Date | Interest<br>Yield | Maturity<br>Date | Amount of<br>Original Issue | Balance<br>July 1, 2024 | Additions    | Deductions   | Balance<br>June 30, 2025 | Due Within<br>One Year |
|--------------------|------------------|-------------------|------------------|-----------------------------|-------------------------|--------------|--------------|--------------------------|------------------------|
| 2011 Series B QSCB | 10/12/2011       | 4.83%             | 8/1/2029         | \$ 15,000,000               | \$ 5,660,000            | \$ -         | \$ 1,440,000 | \$ 4,220,000             | \$ 1,545,000           |
| 2012 Series C QSCB | 2/23/2012        | 5.52%             | 2/1/2032         | 7,640,000                   | 5,045,000               | -            | 525,000      | 4,520,000                | 570,000                |
| 2013 Series D      | 1/31/2013        | 1.00-5.45%        | 8/1/2045         | 17,450,147                  | 1,320,000               | -            | -            | 1,320,000                | -                      |
| 2015 Series E      | 12/2/2015        | 0.79-3.26%        | 8/1/2042         | 4,500,000                   | 4,080,000               | -            | 60,000       | 4,020,000                | 75,000                 |
| 2017 Series F      | 6/22/2017        | 0.88-1.78%        | 8/1/2025         | 1,300,000                   | 360,000                 | -            | 175,000      | 185,000                  | 185,000                |
| 2017 Refunding     | 6/22/2017        | 0.77-3.39%        | 8/1/2035         | 27,085,000                  | 26,000,000              | -            | 65,000       | 25,935,000               | 55,000                 |
| 2019 Series G      | 9/12/2019        | 0.93-2.78%        | 8/1/2045         | 10,000,000                  | 9,500,000               | -            | -            | 9,500,000                | -                      |
| 2019 Refunding     | 9/12/2019        | 3.25-3.65%        | 8/1/2045         | 26,222,013                  | 31,100,742              | 1,124,001    | -            | 32,224,743               | -                      |
| Total              |                  |                   |                  | \$ 109,197,160              | \$ 83,065,742           | \$ 1,124,001 | \$ 2,265,000 | \$ 81,924,743            | \$ 2,430,000           |

*Source: District Audit*

## E. ASSESSED VALUATION

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### EMERY UNIFIED SCHOOL DISTRICT

| Fiscal Year    | Local Secured          | Utility          | Unsecured            | Total                  |
|----------------|------------------------|------------------|----------------------|------------------------|
| 2020-21        | \$ 5,760,585,879       | \$ 71,063        | \$ 572,494,333       | \$ 6,333,151,275       |
| 2021-22        | \$ 6,081,906,107       | \$ 77,162        | \$ 595,814,260       | \$ 6,677,797,529       |
| 2022-23        | \$ 6,571,631,024       | \$ 77,162        | \$ 629,280,241       | \$ 7,200,988,427       |
| 2023-24        | \$ 6,878,293,141       | \$ 77,162        | \$ 808,996,771       | \$ 7,687,367,074       |
| 2024-25        | \$ 7,007,520,159       | \$ 77,162        | \$ 860,128,404       | \$ 7,867,725,725       |
| <b>2025-26</b> | <b>\$7,010,352,462</b> | <b>\$134,231</b> | <b>\$827,996,926</b> | <b>\$7,838,483,619</b> |

Source: California Municipal Statistics

## F. 2024-25 SECURED TAX CHARGES & DELINQUENCIES

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### EMERY UNIFIED SCHOOL DISTRICT

| Secured<br>Tax Charge (1) | Amt. Del.<br>June 30 | % Del.<br>June 30 |
|---------------------------|----------------------|-------------------|
| <b>\$2,937,196.24</b>     | <b>\$27,897.44</b>   | <b>0.95%</b>      |

(1) General obligation bond debt service levy only.

Source: California Municipal Statistics

## **G. LARGEST LOCAL SECURED TAXPAYERS**

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### **EMERY UNIFIED SCHOOL DISTRICT**

#### Largest 2025-26 Local Secured Taxpayers

|     | <u>Property Owner</u>           | <u>Primary Land Use</u> | <u>2025-26<br/>Assessed Valuation</u> | <u>% of<br/>Total (1)</u> |
|-----|---------------------------------|-------------------------|---------------------------------------|---------------------------|
| 1.  | Pixar                           | Studio-Office           | \$ 270,347,133                        | 3.86%                     |
| 2.  | KBSIII Towers Emeryville LLC    | Office Building         | 216,848,803                           | 3.09                      |
| 3.  | LMV II Emeryville Holdings LP   | Apartments              | 198,071,162                           | 2.83                      |
| 4.  | SPUS8 2100 Powell LP            | Office Building         | 194,525,400                           | 2.77                      |
| 5.  | Courtyards at 65th LP           | Apartments              | 194,504,451                           | 2.77                      |
| 6.  | Emery Station West LLC          | Office Building         | 169,885,740                           | 2.42                      |
| 7.  | Avalaon Public Market LLC       | Apartments              | 153,065,195                           | 2.18                      |
| 8.  | Bcore Emerytech Owner LLC       | Office Building         | 138,344,195                           | 1.97                      |
| 9.  | Bay Center Investor LLC         | Office Building         | 136,878,749                           | 1.95                      |
| 10. | G C Diagnostics Corp.           | Industrial              | 132,904,617                           | 1.90                      |
| 11. | Prime US Tower Emeryville LLC   | Office Building         | 132,438,593                           | 1.89                      |
| 12. | BCSP Hollis Property LLC        | Office Building         | 127,905,798                           | 1.82                      |
| 13. | Bay Street Centercal LLC        | Shopping Center         | 116,255,300                           | 1.66                      |
| 14. | Windsor Metropolitan LP         | Apartments              | 113,987,771                           | 1.63                      |
| 15. | ES East LLC                     | Office Building         | 108,382,438                           | 1.55                      |
| 16. | East Bay Bridge Retail LLC      | Shopping Center         | 107,178,742                           | 1.53                      |
| 17. | BRE Properties Inc.             | Apartments              | 104,535,067                           | 1.49                      |
| 18. | Emery Station Joint Venture LLC | Office Building         | 100,388,935                           | 1.43                      |
| 19. | SFF 1650 65th Street LLC        | Industrial              | 97,237,093                            | 1.39                      |
| 20. | HCP Emeryville Partners I LLC   | Office Building         | <u>95,336,451</u>                     | <u>1.36</u>               |
|     |                                 |                         | <u>\$2,909,021,633</u>                | <u>41.50%</u>             |

(1) 2025-26 Local Secured Assessed Valuation: \$7,010,352,462

*Source: California Municipal Statistics, Inc.*

## **H. COUNTY OF ALEMEDA – TEETER PLAN**

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The District is not aware of any changes in the operation of the County of Alameda Teeter Plan affecting the District or tax collections in connection with the District's outstanding general obligation bonds.

## **I. COUNTY OF ALEMEDA – INVESTMENT POOL**

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The District is not aware of any changes in the operation of the Alameda County Investment Pool which would affect the District's access to property taxes used to pay debt service on the Bonds.

## **J. REPORTING OF SIGNIFICANT EVENTS**

|    |                                                                                                                                                                                                                                                                                                                                                                                                       | <b>Yes*</b> | <b>No</b> |
|----|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------|-----------|
| 1  | Principal and interest delinquencies                                                                                                                                                                                                                                                                                                                                                                  |             | X         |
| 2  | Non-payment related defaults                                                                                                                                                                                                                                                                                                                                                                          |             | X         |
| 3  | Unscheduled draws on the Reserve Fund reflecting financial difficulties                                                                                                                                                                                                                                                                                                                               |             | X         |
| 4  | Unscheduled draws on any credit enhancements securing each series of Bonds reflecting financial difficulties                                                                                                                                                                                                                                                                                          |             | X         |
| 5  | Any change in the provider of any letter of credit or any municipal bond insurance policy securing each series of Bonds, or any failure by the providers of such letters of credit or municipal bond insurance policies to perform on the letter of credit or municipal bond insurance policy                                                                                                         |             | X         |
| 6  | Adverse tax opinions or events adversely affecting the tax-exempt status of the Bonds                                                                                                                                                                                                                                                                                                                 |             | X         |
| 7  | Modification of the rights of Bondholders if material                                                                                                                                                                                                                                                                                                                                                 |             | X         |
| 8  | Unscheduled redemption of any Bond                                                                                                                                                                                                                                                                                                                                                                    |             | X         |
| 9  | Tender Offers                                                                                                                                                                                                                                                                                                                                                                                         |             | X         |
| 10 | Defeasances                                                                                                                                                                                                                                                                                                                                                                                           |             | X         |
| 11 | Any release, substitution, or sale of property securing repayment of each series of Bonds                                                                                                                                                                                                                                                                                                             |             | X         |
| 12 | Rating changes                                                                                                                                                                                                                                                                                                                                                                                        |             | X         |
| 13 | Bankruptcy, insolvency, receivership or similar event of the obligated                                                                                                                                                                                                                                                                                                                                |             | X         |
| 14 | The consummation of a merger, consolidation, or acquisition involving an obligated person or the sale of all or substantially all of the assets of the obligated person, other than in the ordinary course of business, the entry into a definitive agreement to undertake such an action or the termination of a definitive agreement relating to any such actions, other than pursuant to its terms |             | X         |
| 15 | Appointment of a successor or additional Paying Agent or the change of name of a Paying Agent.                                                                                                                                                                                                                                                                                                        |             | X         |
| 16 | The incurrence of a financial obligation, or made modifications to a financial obligation, that would affect the security or Bondholders on or after February 27, 2019                                                                                                                                                                                                                                |             | X         |
| 17 | Default, acceleration or an event under any financial obligation which reflects financial difficulties                                                                                                                                                                                                                                                                                                |             | X         |

\*If "Yes", please see following link for the Notice Filing of a Significant Events:

NA

## **K. CONTACT INFORMATION**

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**DISTRICT:** Dora Siu, Chief Business Officer  
Emery Unified School District  
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Tel: (510) 601-4000  
Email: [dora.siu@emeryusd.org](mailto:dora.siu@emeryusd.org)

**DISCLOSURE CONSULTANT:** John B. Greenlee  
Greenlee Disclosure Consulting (GDC)  
Santa Monica, CA 90405  
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Email: [john@greenleedisclosure.com](mailto:john@greenleedisclosure.com)

***Disclaimer:***

Certain information set forth in this report, which was obtained from California Municipal Statistics, is believed by the District to be reliable but has not been independently verified by the District and is not guaranteed as to accuracy by the District. There can be no assurance as to the accuracy of such information and inquiries concerning methodology of procedures carried out to complete such information should be directed to California Municipal Statistics.

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**EXHIBIT A**  
**Listing of all associated CUSIPs with this Filing**

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Security: CUSIP - 291119EC5, Maturity Date - 08/01/2031  
Security: CUSIP - 291119ED3, Maturity Date - 08/01/2035  
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**Emery Unified School District**  
**FYE 2025 Continuing Disclosure Annual Report**

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